

25STCV27169 25STCV27169

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-28

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Case Number: 25STCV27169 Hearing Date: August 28, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 28, 2026

Case Name: Harris v. 111 W 7 Owner, LLC, et al.

Case No.: 25STCV27169

Matter: Motion to Strike

Moving Party: Defendant 111 W 7 Owner, LLC

Responding Party: Plaintiff Tamara Harris

Notice: OK

Ruling: The Motion to Strike is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a landlord-tenant dispute.

Defendant 111 W 7 Owner, LLC now seeks to strike the Complaint's references to punitive damages.

Motions to strike are used to challenge defects in the pleadings not subject to demurrer. Any party may move to strike the whole or any part of a pleading within the time allotted to respond to the pleading. (Code Civ. Proc. § 435(b)(1).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. (Id. § 437(a).) The Court may strike out any irrelevant, false, or improper matter inserted in any pleading, and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. § 436.) An "irrelevant" matter includes any "demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (Id. § 431.10(b)(3), (c); see also *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1036-1042.)

Punitive damages are available when the plaintiff establishes oppression, fraud, or malice by clear and convincing evidence. (Civ. Code § 3294(a).)

Malice means "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1).) In this context, despicable conduct is conduct considered "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 715, internal quotation marks omitted.) Oppression means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) Fraud means "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Id. § 3294(c)(3).)

"[M]alice does not require actual intent to harm. (Id. at p. 895, 157 Cal.Rptr. 693, 598 P.2d 854.) Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences. (Id. at pp. 895-896, 157 Cal.Rptr. 693, 598 P.2d 854.) Malice may be proved either expressly through direct evidence or by implication through indirect evidence from which the jury draws inferences." (*Angie M. v. Superior Ct.* (1995) 37 Cal.App.4th 1217, 1228.)

The Motion is denied as to punitive damages because Plaintiff alleges sufficient facts to indicate malice with regard to Defendant's intentional failure to do repairs at the subject premises. (See *Smith v. David* (1981) 120 Cal.App.3d 101, 112.)

Moving party to give notice.